

## 25SMCV01569 25SMCV01569

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-28

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Case Number: 25SMCV01569 Hearing Date: September 28, 2026 Dept: P

Tentative

Ruling

Arian

Eskandari v. General Motors, LLC Case No. 25SMCV01569

Plaintiff's

Motion for Attorneys' Fees

Hearing

Date: September 28, 2026

Background

This is a

lemon law case. On March 21, 2023, Plaintiff Arian Eskandari sued Defendant General Motors, LLC for breach of implied and express warranties under the Song-Beverly Act. Eskandari alleged that GM failed to repair or replace his new 2023 Cadillac Escalade ESV. (Complaint, ¶ 6.)

On April

30, 2025, GM answered.

On October

31, 2025, Eskandari filed a notice of settlement of entire case.

On January

8, 2026, the Court dismissed this case.

On May 21, 2026, Eskandari filed a Motion for Attorneys' Fees. On September 21, 2026, Eskandari filed a notice of non-opposition to the motion for attorneys' fees.

Eskandari

seeks \$23,832.59 in attorneys' fees and costs, consisting of (1) \$21,290 in attorneys' fees; (2) \$1,041.59 in costs; and (3) \$1,500 for reviewing opposition, preparing a reply, and attending the hearing. (Motion for Attorneys' Fees, pp. 5-6.) Eskandari argues that he is entitled to fees under the Song-Beverly Act and under the § 998 compromise settlement agreement, and that the fees he requests are reasonable.

Motion

for Attorneys' Fees

A prevailing buyer in an action for damages and other legal remedies should receive full compensation of reasonable sums expended in pursuit of their claims against manufacturers who failed to comply with the Song-Beverly Act. (Civ. Code § 1794(d).)

"A trial court assessing attorney fees

begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.'" (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

Analysis

Eskandari

is entitled to recover attorneys' fees as the prevailing party in an action under the Song-Beverly Act and pursuant to the terms of the § 998 compromise. (Civ. Code § 1794(d); Ryu Decl., Exhibit 6, ¶ 2.)

a.

Lodestar

Analysis

Eskandari

requests fees for two senior litigation attorneys, Mr. Ryu and Ms. Shumake, at \$500 per hour and \$475 per hour respectively; one junior associate, Ms. Suoto, at \$350 per hour; one foreign-licensed attorney, Mr. Singla, at \$400 per hour; three paralegals, Ms. Basilio, Ms. Carolyne Castillo and Ms. Martiza Castillo at \$250, \$200, and \$125 per hour; a Case Resolution Manager, Ms. Pastor, at \$200 per hour; and six legal assistants at \$125.00 per hour. (Ryu Decl., ¶¶ 45-58.) Generally, staffing a case as simple as this one with fourteen individuals would be excessive. However, Eskandari's records show that different attorneys, paralegals, and legal assistants worked on this matter sequentially, so multiple individuals were not billing for the same work at the same time. For example, Mr. Ryu and Ms. Shumake were the primary attorneys in this matter at the beginning. However, Mr. Ryu was later supported by Ms. Suoto and then by Mr. Singla. At any given time, there were only two attorneys working on this matter. The support staff's entries are also not duplicative and show that different paralegals and legal assistants worked on the case at different times. Absent opposition, and following a careful review of the record, the Court finds Plaintiff's staffing reasonable.

Eskandari's

counsel's rates are also reasonable. Rates of \$500, \$475, \$350, and \$400 per hour are reasonable for attorneys of Mr. Ryu, Ms. Shumake, Ms. Suoto, and Mr. Singla's experience and education working on a lemon law matter.

Following

a review of Eskandari's billing records, and absent opposition identifying unreasonable or duplicative billing, the Court finds Eskandari's attorneys' time billed on this matter to be reasonable.

Eskandari also

requests costs of \$1,041.59 (Ryu Decl., Exhibit 8.) Following a review of Eskandari's records, the Court finds those costs reasonable.

Finally,

Eskandari requests \$1,500 for time spent reviewing opposition, preparing a reply, and appearing at the hearing on this motion. Since this motion is

unopposed, the Court will only grant one hour of Mr. Ryu's time for appearing at the hearing.

#### Conclusion

Eskandari's

Motion for Attorneys' Fees is GRANTED in the amount of \$22,831.59 (\$21,290 + \$1,041.59 + \$500).